# PROPERTY MANAGEMENT AGREEMENT

This Property Management Agreement (this "Agreement") is made as of as of June 15, 2021, by and between Parakeet Communities, LLC, a Delaware limited liability company (the "Property Manager") and Bay Oaks Village II, LLC, a Delaware limited liability company (the "Owner")

RECITALS:

A. Owner is the owner of a certain mobile home park located in 420 N Kimbrel Avenue, Panama City, FL 32404, which property is commonly referred to as "Bay Oaks Village II" (the "Property");

B. Owner desires to hire Property Manager to oversee and supervise the management, operations and maintenance of the Property in a reasonably efficient, economic and satisfactory manner and to arrange the performance of everything reasonably necessary for the proper operation of the Property pursuant to the terms and conditions set forth herein; and

C. Property Manager desires to provide the property management services for the Property pursuant to the terms and conditions set forth herein.

NOW THEREFORE, the parties agree as follows:

1. Incorporation of recitals. It is agreed that the recitals set forth above are hereby incorporated into the agreement of the parties and shall be deemed part of this Agreement.

2. Term. This Agreement shall initially be for a term of one year. The term of this Agreement shall automatically be extended for an additional one-year period unless it is terminated by either party by providing written notice no later than thirty (30) days prior to the expiration of the initial one-year term. This Agreement shall each and every year thereafter be automatically extended for an additional year unless earlier terminated. Notwithstanding the foregoing, this Agreement shall be terminable at any time by 30 days' written notice from either party.

3. Responsibilities of the Property Manager. Owner appoints the Property Manager as its lawful agent and attorney in fact with full authority to do any and all lawful things necessary for the fulfillment of the provisions of this Agreement, including but not limited to the following: (a) Collecting all rents due as they become due, giving receipts therefore; (b) rendering to Owner a monthly accounting of rents collected and expenses paid out; (c) remitting to Owner all income, less any sums paid out; (d) making or causing to be made all decorating, maintenance, alterations and repairs to the Property as reasonably necessary and hiring and supervising all employees and other individuals and entities to accomplish the duties set forth herein; (e) advertising the Property and displaying signs on the Property, (f) renting and leasing the Property; (g) signing, renewing and canceling rental agreements and leases for the Property or any part thereof; (h)

initiating legal actions to recover for unpaid rent and for loss of or damage to any part of the Property and/or furnishings thereof (including the right to hire legal counsel); and (i) if appropriate, in the discretion of the Property Manager to compromise, settle and release said legal proceedings or lawsuits. Property Manager hereby acknowledges the foregoing and agrees to perform its obligations pursuant to the terms of this Agreement.

4. Indemnification and holding the Property Manager Harmless. It is agreed that Owner does hereby agree to indemnify and hold the Property Manager harmless from any and all claims, charges, debts, demands and lawsuits or threatened lawsuits, including but not limited to reasonable attorney's fees, court costs and costs of expert witnesses, and from any liability for injury (or even death) occurring on or about the Property which may be suffered by an employee, tenant, invitee or anyone else who is on the Property related to any acts or omissions performed in connection with the Property Manager managing the Property, in good faith and in a manner reasonably believed to be in the best interests of Owner and within the scope of the authority conferred on the Property Manager by this Agreement or by law, unless the act or omission resulted from the Property Manager's willful misconduct, bad faith, gross negligence or reckless disregard of its obligations and duties to Owner.

5. Compensation to be paid to the Property Manager. Property Manager shall submit and invoice each month for an amount equal to five percent (5.0%) of the gross income that the Property Manager collects for the month, plus such additional documented expenses that the Property Manager incurs in such month to the Owner. Owner shall remit payment to the Property Manager within fifteen (15) days of receipt of invoice.

6. Notice. Any notice required to be provided pursuant to this Agreement shall be in writing and shall either be delivered in person or sent by certified mail, return receipt requested, sent to the addresses set forth herein and to the attention of the applicable party. It is agreed that if notice is to be provided by certified mail, it shall be deemed received when actually received or when notice is rejected. As of the date of this Agreement the addresses of the parties are as follows:

If to Property Manager:
Parakeet Communities, LLC
10221 River Road
Potomac, MD 20859
Attn: Austin Berk

If to Owner:
Bay Oaks Village II, LLC
10221 River Road
Potomac, MD 20859
Attn: Austin Berk

7. Agreement governed by the laws of the State of New York. This Agreement shall be

governed by the laws of the State of New York and the applicable court to hear any matter regarding this agreement shall be in the county where the Property is located.

8. Entire agreement. This is the entire agreement of the parties. No modification of this Agreement shall be deemed effective unless in writing and signed by all of the parties hereto.

9. Facsimile signatures are binding signatures. It is agreed that facsimile signatures shall be binding signatures.

10. Counterparts. This Agreement may be executed in multiple counterparts, each of which shall be considered an original and all shall constitute one and the same Agreement, binding upon all of the parties hereto, notwithstanding that all of the parties may not be signatories to the same counterpart.

11. Further Assurances. Property Manager and Owner shall execute and deliver such further instruments and do such further acts and things as may reasonably be required to carry out the intent and purposes of this Agreement.

12. Loan Documents. Property Manager acknowledges that Owner may obtain a loan secured by the Property and enter into a cash management system in connection with such secured loan. Notwithstanding anything to the contrary contained herein, the loan documents may require rents, revenues and proceeds from the Property to be deposited directly into a lockbox account in which Owner's lender has a security interest and for so long as any such loan remains outstanding, Property Manager agrees to abide by all of the terms and conditions of the applicable loan documents with regard to the operation of the Property and any cash management system required thereunder and not to take any action with respect to the rents, revenues or proceeds of the Property or otherwise in the performance of its obligations under this Agreement that would result in a violation of the terms of the Owner's loan documents.

13. Subordination of Management Agreement. This Agreement and any and all liens, rights and interests (whether choate or inchoate and including, without limitation, all mechanic's and materialmen's liens under applicable law) owed, claimed or held, by Property Manager in and to the Property, are, and shall be in all respects, subordinate and inferior to the liens and security interests created, or to be created, for the benefit of any lender entering into a secured loan transaction with Owner. In addition, any Management Fees, asset management fees, leasing commissions or incentive fees which are in excess of three percent (3.0%) of gross revenues shall only be payable to the extent there is sufficient excess cash flow available from the operation of the Property after payment of ongoing debt service, funding of reserves of payment of other expenses in connection with the Loan.

14. No presumptions. It is agreed that both Owner and the Property Manager have had input regarding the terms of this Agreement and thus no presumptions shall be made for or against any party to this Agreement.

**IN WITNESS WHEREOF**, this Agreement shall be effective as of the date, first above written.

OWNER:

BAY OAKS VILLAGE II, LLC,
a Delaware limited liability company

By:_____
Name: Austin Berk
Title: Authorized Signer

PROPERTY MANAGER:

PARAKEET COMMUNITIES, LLC
a Delaware limited liability company

By:_____
Name: Austin Berk
Title: Authorized Signer